

**Court No. - 39**

**Case :-** WRIT - C No. - 23679 of 2020

**Petitioner :-** Ashish Kumar

**Respondent :-** Purvanchal Vidyut Vitran Nigam Ltd. And 2 Others

**Counsel for Petitioner :-** Udai Shankar Chauhan

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Naheed Ara Moonis,J.**

**Hon'ble Dinesh Pathak,J.**

Heard the learned counsel for the petitioner, learned Standing counsel for the respondent no. 3 and Sri N. K. Tiwari, learned counsel for the respondent nos. 1 and 2.

The present writ petition has been filed with the following relief;

*1. Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery citation dated 29.06.2020 issued by the Collector, Mau during the pendency of present writ petition.*

*2. Issue a writ, order or direction in the nature of mandamus directing to the respondent no. 2 to take a decision upon the objection filed by the petitioner against the final revenue assessment dated 16.12.2019 within stipulated time period.*

*3. Issue any other writ, order or direction in the nature of mandamus directing the respondent no.2 to restore the electricity supply of the petitioner forthwith.*

*4. Issue any other suitable writ order or direction as this Hon'ble Court may deem fit and proper in the circumstances of the case to meet the end of justice.*

*5. Award the cost of the writ petition to the petitioner."*

It is the case of the petitioner that the recovery citation has been issued against the petitioner while representation against the assessment notice is pending for consideration.

Learned counsel for the Power Corporation submits that the premises of the petitioner was inspected and checking report was prepared. The provisional assessment was made on 1.10.2019. No reply was submitted on behalf of the petitioner. The provisional assessment confirmed on 16.12.2019. Against the final assessment the petitioner has a

remedy of filing an appeal under Section 127 of the Electricity Supply Code. The learned counsel for the petitioner does not dispute that an appeal lies against the assessment order.

In view of the availability of the alternative remedy the writ petition is dismissed.

**Order Date :-** 5.1.2021  
Shahnawaz